

25STLC09057 25STLC09057

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC09057 Hearing Date: August 24, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Marcos

Garcia's Motion for Leave to File First Amended Complaint is granted.

The Court sets an Order to Show Cause Re: Why This Action Should Not Be Reclassified as an Unlimited Civil Action and Transferred to the Reclassification/Transfer Desk for Collection of Fees and Reassignment to an Unlimited Civil Court for 09/15/2026, 2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Analysis:

On December 3, 2025, Plaintiff Marcos

Garcia ("Plaintiff") filed the instant action for (1) Violation of the Consumers Legal Remedies Act, Civil Code § 1750, et seq.; (2) Violation of Civil Code § 1632; (3) Fraud & Deceit; (4) Negligent Misrepresentation; (5) Violation of the Unfair Competition Law, Business & Professions Code § 17200, et seq.; and (6) Violation of Vehicle Code § 11711. The Complaint was brought against Defendants Sun Land Auto Group Sales & Leasing, LLC ("Defendant Sun Land") and American Contractors Indemnity Company ("Defendant ACIC"), who filed Answers on January 2, 2026 and January 9, 2026, respectively. On April 2, 2026, Defendant Sun Land filed an Answer to a First Amended Complaint that has not yet been filed.

On May 20, 2026,

Plaintiffs filed the instant Motion for Leave to File First Amended Complaint. Defendant Sun Land filed an opposition on August 3, 2026.

Discussion

Plaintiff moves for leave to file

a First Amended Complaint that adds a request for damages under the Consumer Legal Remedies Act ("CLRA"). The Motion is brought pursuant to Civil Code section 1782, subdivision (d) and Code of Civil Procedure section 473, subdivision (a).

An action for damages under the

CLRA may be brought only after the consumer provides 30 days' notice and "demand that the person correct, repair, replace, or otherwise rectify the goods or services alleged to be in violation of Section 1770." (Civ. Code, § 1782, subd. (a).) An action for damages under the CLRA may not be maintained if an appropriate correction is given, or agreed to be given within a reasonable time, within 30 days' receipt of the notice. (Civ. Code, § 1782, subd. (b).) No notice is required for an action for injunctive relief under specific provisions of section 1770. (Civ. Code § 1782, subd. (d).) No sooner than 30 days after commencing the action, a consumer may amend the complaint to add a request for damages without leave of court after giving notice and making the demand specified in subdivision (a). Specifically, subdivision (d) states that "Not less than 30 days after the commencement of an action for injunctive relief, and after compliance with subdivision (a), the consumer may amend his or her complaint without leave of court to include a request for damages." (Civ. Code, § 1782, subd. (d).)

Plaintiff, having brought a claim

for injunctive relief under section 1770, now seeks to amend the Complaint to add a request for damages under the CLRA. (Motion, Stones Decl., ¶3.) In compliance with the notice requirements of subdivision (a), section 1782, Plaintiff served Defendants with a CLRA notice and demand. (Id. at ¶4.) Defendants did not provide or offer to provide a correction within 30 days' receipt of the notice. (Ibid.) These representations regarding notice and the absence of correction are undisputed. (See generally, Opp.) The proposed First Amended Complaint alleges that Defendant did not provide or offer to provide a correction within 30 days and seeks all available relief under the CLRA, including rescission, restitution, actual and incidental damages, punitive damages, as well as the originally sought injunctive relief. (Id. at ¶7 [citing Exh. 1 at ¶25].) Plaintiff sought to file the First Amended Complaint without leave of court as permitted by Civil Code section 1782, subdivision (d), but it was rejected by the clerk's

office. (Id. at ¶10.) Plaintiff also sought Defendants' stipulation to amend the Complaint, but declined their request to dismiss Defendant ACIC with prejudice in exchange for the stipulation. (Id at ¶¶11-12 and Exh. 2.) As a result, Plaintiff filed the instant Motion.

Leave to amend was not required in this instance. In light of Plaintiff's entitlement to amend the Complaint without leave of court under section 1782, and its compliance with the statutory prerequisites, the Court grants the Motion. To the same extent as any other order granting leave to amend a complaint, this order is procedural and is not a comment on the merits of the proposed amended complaint.

The Court notes that a limited civil court cannot grant permanent injunctive relief. (Code Civ. Proc., 85, 86(a)(8).) Because Plaintiff seeks injunctive relief, the Court sets a show cause hearing as indicated below regarding reassignment to an unlimited civil court. (See Mot., Stones Decl., Exh. 1,

p. 10, ¶ 6.)

Conclusion

Plaintiff Marcos

Garcia's Motion for Leave to File First Amended Complaint is granted. Plaintiff is to file and serve the proposed First Amended Complaint within 20 days of this ruling.

The Court sets an Order to Show Cause Re: Why This Action Should Not Be Reclassified as an Unlimited Civil Action and Transferred to the Reclassification/Transfer Desk for Collection of Fees and Reassignment to an Unlimited Civil Court for 09/15/2026, 2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Moving party to give notice.